

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-30

NIELSEN & BAINBRIDGE, LLC

v.

OCEAN NETWORK EXPRESS PTE. LTD.

THIRD JOINT MOTION TO EXTEND DEADLINES

COME NOW the parties, Complainant Nielsen & Bainbridge, LLC (“Complainant” or “NBG”), and Respondent Ocean Network Express Pte. Ltd. (“Respondent” or “ONE”), by their respective undersigned counsel, and, pursuant to 46 C.F.R. Sections 502.69 and 502.102, hereby submit this Joint Motion to Extend Deadlines (“Motion”) and respectfully request a 30-day extension of the remaining deadlines set forth in the Presiding Officer’s August 20, 2026 Third Amended Scheduling Order to accommodate the current progress of the Parties’ discovery, primarily fact depositions, which is progressing as quickly as possible, and to provide a more workable deposition schedule.

I. The Current Schedule

On August 20, 2026, the Presiding Officer entered a Third Amended Scheduling Order with the following deadlines relevant to this Motion:¹

¹ Dkt. 26.

EVENT	CURRENT DEADLINE
Complete depositions of fact witnesses	September 28, 2026
Last day to serve interrogatories, requests for admission, and requests for production of documents	September 28, 2026
Disclosure of initial expert reports, if any	October 9, 2026
Disclosure of rebuttal expert reports, if any	October 19, 2026
Complete expert depositions	November 2, 2026
Close of discovery	November 2, 2026
Complainant's Brief, proposed findings of fact, appendix due	December 2, 2026
Respondent's Opposition brief, proposed findings of fact, response to Complainant's proposed findings of fact, appendix due	January 4, 2026
Complainant's Reply Brief, response to Respondent's proposed findings of fact due	January 15, 2026

The Parties submit the below as good cause for an additional 30-day (plus slight modifications to accommodate deadlines falling over weekends) extension of each of the respective dates at issue:

The Parties have worked together to make significant steps in the discovery process in the present matter, including significant document discovery productions and review on both sides. As previously reported, Complainant substantially completed its document production on May 29, 2026 and Respondent completed its document production on July 28, 2026. As of the filing of this Motion, the Parties have held depositions for three witnesses, Adeline Tang and Michael Wray at ONE and Albert Josiah at NBG. There are also currently an additional three ONE witnesses and one NBG witness scheduled for next week, which would bring us to nearly the end of the current deadline for fact witnesses. These depositions are noted in the list below, where the schedule through August and September has been illustrated.

Complainant and Respondent are continuing to cooperate so that the process of arranging depositions is as smooth as possible and appreciate the Presiding Officer's entry of

subpoenas for NBG's witnesses on September 4, 2026. Notwithstanding the Parties' best efforts, the arrangements are logistically more complex than in a normal situation since many of the witnesses for the Complainant are former employees and other carriers in other NBG-related FMC proceedings also seek to depose the same former NBG employees. In this case, Complainant has scheduled and plans to hold depositions for two key witnesses: Albert Josiah (held September 18, 2026) and Diana Castro (scheduled September 25, 2026). Complainant has also heard back from witnesses Bradley Scher, Andrew Bornefeld, Moe Glenner, Jan Whitaker, and Mindy Marcks, who are prepared to testify and are available on dates between service of this Motion and through mid-October, but cannot currently be scheduled within the present deadline of September 28 for fact depositions due to their own availability (work, travel, or religious holiday) or due to current, scheduled depositions and availability of counsel to adequately prepare witnesses and attend such depositions. Complainant has also made several attempts through email, text, and a phone call to reach out to Panadda White and is planning to submit a subpoena request for her themselves and continue to try to schedule her within the time allotted.

Furthermore, Respondent has attempted service subpoenas on additional former NBG employees Brittany Withers, Michael C. Clark and Wenjie Xie. Service was not successful due to the three individuals moving from the last known addresses provided. Respondent carried out further investigation and is arranging service on alternative addresses. Service on one additional NBG former employee, Kerry Graskewicz, has also been in "pending" status with the process server who so far has not been able to make contact with the individual.

The Parties met and conferred on the current schedule of depositions on September 17, 2026. The Parties remain appreciative of the Presiding Officer's admonitions regarding further

extensions requests and the Parties have continued to make every effort to meet the deadlines in the Third Amended Scheduling Order. Given the timing of depositions across Complainant's cases, the Parties believe that additional time to allow for scheduling fact depositions in this proceeding is warranted to give the Parties fair opportunity hold depositions and arrange to take testimony from willing and available witnesses who have been served subpoenas.

In sum, this request is based on the timing of reasonable notice needed to plan and execute a complex deposition calendar. To provide a workable deposition schedule, using all reasonable efforts, the Parties respectfully submit that the request made herein be granted.

II. Good Cause Exists to Extend the Current Deadlines

A. Numerous Depositions in August and September in Severed NBG Proceedings Contribute to the Need for an Extended Timeframe

Initially, NBG brought this proceeding against multiple Respondents but that proceeding was severed into multiple individual dockets. *See* Order Severing Cases and Initiating Discovery, Dkt. 3. Unfortunately, many of the depositions in the severed proceedings are presently taking place during the same time as the period in which depositions must be scheduled in this proceeding pursuant to the current scheduling orders. For Complainant, that means (1) its counsel's resources are stretched unusually thin throughout August and September; (2) consequently, it has less flexibility than it would usually have to schedule times that are convenient for witnesses and Respondent's counsel; and (3) Complainant must work with its now-former employees to schedule depositions for multiple cases while avoiding conflicts with those former-employees' personal and professional schedules.

As noted below, there are currently depositions scheduled or tentatively scheduled for *most of the remaining business days in September, in addition to a dense schedule across the months*

of August and September (some of which start on one day and end on another day due to taking place in different time zones). Some days already have more than one deposition scheduled, which has stretched Complainant's legal team and personnel availability.

- August 4 (one deposition in *NBG v. OOCL*)
- August 5 (one deposition in *NBG v. OOCL*)
- August 9 (start of one deposition in *NBG v. Yang Ming/Evergreen*)
- August 10 (end of deposition in *NBG v. Yang Ming/Evergreen* identified above)
- August 11 (one deposition in *NBG v. OOCL*; start of one deposition in *NBG v. Yang Ming/Evergreen*)
- August 12 (end of one deposition in *NBG v. Yang Ming/Evergreen*; start of second deposition in *NBG v. Yang Ming/Evergreen*)
- August 13 (one deposition in *NBG v. OOCL*; end of deposition in *NBG v. Yang Ming/Evergreen* identified above)
- August 17 (one deposition in *NBG v. Evergreen/Yang Ming*)
- August 19 (one deposition in *NBG v. Evergreen/Yang Ming*)
- August 21 (one deposition in *NBG v. Evergreen/Yang Ming*)
- August 25 (one deposition in *NBG v. Evergreen/Yang Ming*)
- August 26 (one deposition in *NBG v. Evergreen/Yang Ming*)
- August 28 (one deposition in *NBG v. Evergreen/Yang Ming*)
- September 2 (one corporate deposition in *NBG v. Evergreen/Yang Ming*)
- September 9 (start of one deposition in *NBG v. ONE*)
- September 10 (end of one deposition in *NBG v. ONE*)
- September 15 (one deposition in *NBG v. ONE*)
- September 16 (one deposition in *NBG v. ONE*)
- **September 18 (one deposition in *NBG v. ONE*)**
- **September 18 (one expert deposition in *NBG v. OOCL*)**

- September 21 (one expert deposition in *NBG v. OOCL*)
- September 22 (one expert deposition in *NBG v. OOCL*)
- September 22 (one deposition in *NBG v. ONE*)
- September 23 (one deposition in *NBG v. ONE*)
- September 24 (one deposition in *NBG v. ONE*)
- September 25 (one deposition in *NBG v. ONE*)

Complainant sincerely desires to accommodate the scheduling preferences of prospective deponents to the extent it can do so, especially those concerning existing work (*for many persons who are no longer employees of the Parties*), travel, or religious reasons. But Complainant's ability to accommodate witnesses' schedules is seriously impacted by the fact that there are many times when a significant number of Complainant's counsel will not be available due to other depositions. This factor suggests an extension is reasonable to take the *remaining five to six depositions* in the subject proceeding and will help all parties and witnesses achieve a reasonable deposition calendar.

In making this Motion, the Parties have limited their request to the least amount of time in which they believe they can feasibly conduct depositions for this large, complex litigation, with the understanding that they will also continue to work to stipulate to facts, limit depositions, and expeditiously resolve discovery disputes and produce documents promptly to the extent possible. Although the Parties will continue to endeavor to adhere to the ordered schedule, genuine scheduling conflicts make for an impossible, current situation to accommodate the valuable witness testimony required to properly litigate this case. The Parties have worked cooperatively to limit extension requests, including by working to facilitate consent for email service of subpoenas and provision of contact information, where available.

Rule 102(a) of the Federal Maritime Commission’s Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: “Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause.” This case is similar to that in *Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*, Docket No. 23-02, where over 30 depositions were taken, if scheduling across Complainant’s concurrent FMC matters is taken into consideration.

III. Conclusion

Given that sufficient time is needed to perform a reasonable review of produced documents and accommodate potential deposition witnesses’ schedules—many of which are no longer employed by NBG—and in Complainant’s case there are additional scheduling concerns for the month of September, there is good cause to extend the remaining deadlines in the Presiding Officer’s Second Amended Scheduling Order. Extending the deadlines approximately 30 days is necessary **to hold depositions adequately with the concurrent slate of depositions in the severed NBG proceedings**. The Parties will endeavor to avoid seeking additional extensions of time and, to the extent motions are needed, will seek to raise them as soon as the need appears and, where possible, file them jointly.

The Parties therefore jointly request the following amended schedule, which (accounting for weekends) moves 30 days from the deadlines of the Third Amended Scheduling Order:

EVENT	PROPOSED DEADLINE
Complete depositions of fact witnesses	October 28, 2026
Last day to serve interrogatories, requests for admission, and requests for production of documents	October 28, 2026
Disclosure of initial expert reports, if any	November 9, 2026
Disclosure of rebuttal expert reports, if any	November 18, 2026

Complete expert depositions	December 2, 2026
Close of discovery	December 2, 2026
Complainant's Brief, proposed findings of fact, appendix due	January 4, 2026
Respondent's Opposition brief, proposed findings of fact, response to Complainant's proposed findings of fact, appendix due	February 3, 2027
Complainant's Reply Brief, response to Respondent's proposed findings of fact due	February 15, 2027

Pursuant to 46 C.F.R. Section 502.71(a), counsel for Complainant and counsel for Respondent have discussed this Motion with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement. The Parties each agree to the relief requested in this Motion.

WHEREFORE, the Parties jointly pray that their Third Joint Motion to Extend Deadlines be granted.

Dated: September 21, 2026

Respectfully submitted,

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